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The concept of public trusteeship: A missed opportunity to navigate the tension between mining interests and water resource protection in Kangra Coal (Pty) Ltd v The Trustees of the Time Being of the Corneels Greyling Trust and Others (1052/2023) [2025] ZASCA 09

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ABSTRACT

This case note critically analyses Kangra Coal (Pty) Ltd v The Trustees of the Time Being of the Corneels Greyling Trust and Others (1052/2023) [2025] ZASCA 09 (6 February 2025), a matter that foregrounded the tension between mining activities and the protection of water resources as it progressed through the Water Tribunal, the High Court, and, ultimately, the Supreme Court of Appeal (SCA). The analysis contrasts the High Court's emphasis on the concept of public trusteeship and its precautionary approach to water resource protection with the SCA's more procedurally driven and formalistic stance, particularly in its treatment of locus standi for affected parties, the interpretation of timelines for lodging water-use license appeals, and the requirements for obtaining an interdict to halt activities potentially harmful to the country's water resources. The case note argues that a more purposive and constitutionally grounded approach would better equip South African courts and decision-makers to respond to the complex and urgent challenges of water governance in a mining-dependent and water-scarce country. It seeks to influence future jurisprudence by calling for the rigorous interpretation and consistent application of the concept of public trusteeship, greater clarity regarding the Water Tribunal's jurisdiction, and the continuance of a broad understanding of locus standi.

Keywords: appeal; environmental governance; locus standi; mining; public trusteeship; water tribunal; water use licence

1 INTRODUCTION

The relationship between mineral extraction, the protection of vital water resources, and access to justice represents one of the most complex challenges there is in environmental governance – in South Africa, regionally in Africa,¹ and globally.² In South Africa, the source of this tension lies in an entrenched nexus between (on the one hand) mining activities and economic development and (on the other) the constitutional imperative to protect environmental and water resources, on the other.³ This nexus thus gives rise not only to regulatory complexity but to fundamentally contested visions of development, sustainability, and even social justice.⁴ Coal mining, in particular, is both water-intensive and a significant source of water pollution,⁵ placing additional pressure on the country's already stressed freshwater resources, whose scarcity is exacerbated by climate change⁶ and deteriorating infrastructure.⁷

Against that backdrop, this case note argues that the South African water law, specifically the concept of public trusteeship and the procedural mechanisms of the Water Tribunal, must be applied and interpreted through a purposive and responsive lens to

¹ In Zambia, for example, jurisprudence demonstrates a willingness to recognise and address serious mining-related interference with water resources. See *James Nyasulu v Konkola Copper Mines, Environmental Council of Zambia and Chingola Municipal Council* (2007) HP 1286; Mulenga C "Judicial mandate in safeguarding environmental rights from the adverse effects of mining activities in Zambia" (2019) 22 *PELJ* at 12.

² Schodere M & Ott M "Contested water- and miningscapes – Explaining the high intensity of water and mining conflicts in a meta-study" (2022) 154 *World Development* 105888 at 1.

³ See sections 24 and 27 of the Constitution of the Republic of South Africa, 1996; Plageron S & Stuart L "The South African mining sector: Exploring the dynamics of the social, economic and environmental policy nexus" in Yi I, Kaasch A & Stetter K (eds) *Emerging trends in social policy from the South: Challenges and innovations in emerging economies* Bristol: Policy Press (2024) 114 at 114–136.

⁴ Campbell SD "Sustainable development and social justice: Conflicting urgencies and the search for common ground in urban and regional planning" (2013) 1 *Michigan Journal of Sustainability* 75 at 75; Filho WL et al. "Understanding responses to climate-related water scarcity in Africa" (2002) 806 *Science of the Total Environment* 150420 at 3; September-Van Huffel AL "The evolving developmental role of the state as a public trustee of South Africa's natural resources" (2024) 28 *Law Democracy & Development* 152 at 155; Viljoen G "Public trusteeship, the reserve and the water-energy-food nexus: Implications for social justice in South Africa's water law" (2024) 20 *Law, Environment and Development Journal* 78 at 80.

⁵ Du Plessis A *Freshwater challenges of South Africa and its Upper Vaal River: Current state and outlook* Berlin: Springer (2017) at 8; Masood N, Hudson-Edwards K & Farooqi A "True cost of coal: Coal mining industry and its associated environmental impacts on water resource development" (2020) 19 *Journal of Sustainable Mining* 135 at 136–144.

⁶ Du Plessis (2017) at 8; Filho et al. (2002) at 1–3.

⁷ Du Plessis (2017) at 9; Schodere & Ott (2022) at 1–2.

effectively balance the competing interests of mineral extraction and the protection of scarce water resources. The argument is developed through critical reflection on, and engagement with, recent jurisprudence (the “Kangra case”) that illustrates both the potential and the limitations of existing legal mechanisms in addressing these tensions.

In particular, the case note focuses on a dispute that originated in the Gauteng Division of the High Court, Johannesburg, in *The Trustees for the Time Being of the Corneels Greyling Trust and Mooibank Boerdery (Pty) Ltd v The Minister of Water and Sanitation and Others* (2023/069111) [2023] ZAGPJHC 898 (11 August 2023) (“the High Court case”) and was subsequently taken on appeal to the Supreme Court of Appeal (SCA) in *Kangra Coal (Pty) Ltd v The Trustees of the Time Being of the Corneels Greyling Trust and Others* (1052-2023) [2025] ZASCA 09 (“the SCA case”). The judgments in both matters are critically analysed to assess their treatment of key doctrinal and constitutional issues. The dispute concerns Kangra Coal (Pty) Ltd (“Kangra”), a mining company operating an underground mine at the Kusipongo Colliery in Mpumalanga, and the Trustees of the Corneels Greyling Trust together with Mooibank Boerdery (Pty) Ltd, both of which are commercial farming entities situated in proximity to the colliery and dependent on the area’s underground water resources for their agricultural activities.⁸

Although the literature on the mining-water nexus is well developed in relation to environmental impacts and even social consequences,⁹ few studies offer a synthesised, theoretically grounded account of how legal frameworks, particularly the concept of public trusteeship, may be mobilised to navigate the tensions between mining interests and water-resource protection.

⁸ *Kangra* (2025) at para 2.

⁹ Chagadama S & Viljoen G “The concept of social justice in mine-host community involvement and benefit accrual: Reflections from mineral extraction in Zimbabwe” (2024) *PELJ* 27; Muswqaka L “An analysis of the legislative framework concerning sustainable mining in South Africa” (2017) *Speculum Juris* 1–21; Peters C & Myneni S “The water-mining-climate nexus in South Africa: A global solution for a local problem” (2019) *High Meadows Environmental Institute* available at <https://environment.princeton.edu/research/grand-challenges-overview/water-and-the-environment-grand-challenge/the-water-mining-climate-nexus-in-south-africa-a-global-solution-for-a-local-problem/> (accessed 20 May 2025); Schodere & Ott (2022) at 3; Thomashausen S et al. “A comparative overview of legal frameworks governing water use and waste water discharge in the mining sector” (2018) 55 *Resources Policy* 143; Ochieng GM et al. “Impacts of mining on water resources in South Africa: A review” (2010) 5(22) *Scientific Research and Essays* 3351.

This note seeks to address this gap by critically examining the divergent approaches adopted by the courts concerned. As will be elaborated upon below, the High Court judgment in the Kangra case is particularly significant for its explicit recognition and application of the concept of public trusteeship within South Africa's water law – specifically concerning water use licenses (WULs) in the mining sector. By contrast, the SCA judgment is critically analysed as reflecting a missed opportunity. Rather than engaging substantively with public trusteeship as a constitutional and doctrinal tool, the SCA adopts a narrower, more formalistic approach that fails to give meaningful effect to the state's fiduciary obligations.

This case note is structured into four main parts. Part 1 outlines the background and facts of the case. Part 2 summarises and discusses the key legal issues and the respective judgments in the High Court and the SCA cases, with particular attention given to the latter's failure to engage meaningfully with the concept of public trusteeship. Part 3 undertakes a critical analysis which argues that this omission constitutes a missed opportunity not only to shape the interpretation of the country's water law in a manner that protects a scarce resource but to develop coherent jurisprudence capable of guiding the reconciliation of mining interests with water-resource protection. Part 4 concludes with a reflection on the broader implications of the case(s) and offers recommendations aimed at shaping future discourse and judicial reasoning.

2 FACTS OF THE CASE

The High Court and SCA cases both concern a dispute involving Kangra, which was granted a mining right in terms of the Mineral and Petroleum Resource Development Act 28 of 2002 (MPRDA) in July 2017.¹⁰ It is uncontested that Kangra had obtained a mining right and, by implication, environmental authorisation under the National Environmental Management Act 108 of 1997 (NEMA).¹¹ In 2020, Kangra applied to the Department of Water and Sanitation (DWS) for a WUL in terms of the National Water Act 36 of 1998 (NWA)¹² and the Regulations Regarding the Procedural Requirements for Water Use

¹⁰ *Kangra* (2023) at para 9.

¹¹ *Kangra* (2023) at para 9.

¹² *Kangra* (2023) at para 9.

Licence Applications (GN R267 of 2017) to support its mining operations and associated infrastructure at the Balgrathen A adit (“the adit”).¹³

The land where the adit is situated is close to properties owned by the Corneels Greyling Trust and Mooibank Boerdery (Pty) Ltd (the applicants in the High Court and respondents in the SCA case).¹⁴ These entities are farming enterprises that depend on natural springs in the area to irrigate their crops and sustain their livestock for both commercial and domestic purposes.¹⁵ The farming enterprises (farmers) objected to Kangra’s application for the WUL,¹⁶ citing concerns over the potential negative effects of the mining on the quantity and quality of the water essential to their agricultural activities. Despite the objections, the Chief Director of the DWS granted the WUL to Kangra on 25 October 2021.¹⁷

The farmers were dissatisfied with the decision to grant Kangra the WUL. On 14 December 2021, 19 January 2022, and 13 April 2022, respectively, they submitted requests to the DWS’s Chief Director seeking reasons for his decision.¹⁸ They also informed the DWS of their intention to appeal to the Water Tribunal within 30 days of receiving such reasons.¹⁹ Despite their repeated requests, the Chief Director failed to provide any response.²⁰

Kangra, however, continued its mining activities and water use.²¹ Still having not received reasons for the decision, the farmers proceeded to lodge an appeal with the Water Tribunal on 12 July 2022 in which they challenged the DWS’s decision to grant the WUL.²² Notably, they contended that lodging this appeal automatically suspended the

¹³ *Kangra* (2023) at para 9.

¹⁴ *Kangra* (2023) at paras 6 and 9.

¹⁵ *Kangra* (2023) at para 22.

¹⁶ *Kangra* (2023) at para 12; *Kangra* (2025) at para 2.

¹⁷ *Kangra* (2023) at para 11; *Kangra* (2025) at paras 3 and 4.

¹⁸ *Kangra* (2025) at para 4.

¹⁹ *Kangra* (2023) at para 12.

²⁰ *Kangra* (2025) at para 5.

²¹ *Kangra* (2023) at para 14.

²² The Water Tribunal was established in terms of section 146(1) of the NWA. Its primary role is to review appeals against decisions and directives outlined in sections 148(1)(a)–(m) of the NWA. See Viljoen G “The concept of public trusteeship and the water-energy-food-climate (WEFC) nexus in discretionary decision-making: Insights from *Thungela Operations v Department of Water and Sanitation* (Water Tribunal, 26 April 2023)” (2024) 2 *Speculum Juris* 497 at 502.

WUL according to section 148(2)(b) of the NWA.²³ Kangra in turn argued that the appeal was brought outside of the timeframes set out in section 148(3) of the NWA in that the farmers' appeal was filed more than eight months late and was hence invalid. Kangra held that the WUL was thus not suspended and that its continued water use in terms of the WUL was lawful.²⁴ Section 148(3) stipulates that the timelines are as follows:

(3) An appeal must be commenced within 30 days after – (a) publication of the decision in the Gazette; (b) notice of the decision is sent to the appellant; or (c) reasons for the decision are given, whichever occurs last.

The farmers attributed the delay in lodging their appeal to the Chief Director's failure to provide them with reasons for his decision within the prescribed period of 30 days.²⁵ They submitted that their appeal was not late, as the delay was caused by circumstances beyond their control in that they never received reasons for the decision from the DWS. Being overly cautious, however, the farmers applied for condonation for the late filing of the appeal.²⁶ In July 2023, the farming enterprises approached the Gauteng Division of the High Court, Johannesburg, for an urgent interdict to stop Kangra from conducting mining activities pending the Water Tribunal appeal. They argued that Kangra's mining posed a risk to their water resources and that Kangra's WUL should be regarded as suspended due to their (pending) appeal to the Water Tribunal.

As will be shown in more detail below, Kangra, dissatisfied with the outcome at the High Court, subsequently appealed the decision to the SCA.

3 SUMMARY AND DISCUSSION OF THE LEGAL QUESTIONS

3.1 The High Court case

The High Court case centred on an application for an urgent interdict brought by the two commercial farming enterprises ("the applicants") to prevent Kangra from continuing its mining activities, the basis for the interdict being alleged ongoing harm to the area's water resources. The applicants contended that Kangra was mining unlawfully, as a pending appeal against its WUL should have triggered a statutory suspension of that licence. In

²³ *Kangra* (2025) at paras 3 and 5.

²⁴ *Kangra* (2025) at para 13.

²⁵ *Kangra* (2025) at para 5.

²⁶ *Kangra* (2023) at paras 1 and 13.

response, Kangra argued that no valid appeal existed because the challenge was lodged outside of the permitted timeframe.

To determine whether it could grant the relief requested by the applicants, the High Court was required to consider at least three key legal issues: (1) urgency; (2) legal standing (*locus standi*); and (3) whether the applicants satisfied the three requirements for a final interdict – namely, the existence of a clear right, the existence of harm, and the absence of an alternative legal remedy.²⁷

The High Court first determined whether the application warranted “urgent consideration”.²⁸ In this context, “urgency” concerns the procedural justification for departing from the ordinary timeframes and requirements prescribed by the Uniform Rules of Court, where such departure is necessary to prevent irreversible damage that cannot be adequately remedied.²⁹ The onus rests on the applicants to establish the existence of exceptional circumstances justifying urgent intervention and to show that, without an urgent hearing or immediate judicial intervention, they would be deprived of substantial redress at a later stage.³⁰

As such, in the High Court case, the commercial farmers bore the responsibility of showing that Kangra’s continued unlawful use of its WUL posed a serious risk of contaminating underground water that feeds 24 natural springs vital for their agricultural activities. The applicants thus argued that Kangra’s continued water use, coupled with the potential for acid mine drainage, could result in the contamination and degradation of the groundwater resources.³¹ This, they contended, amounted to irreversible environmental harm³² – damage that could not be undone and for which no meaningful remedy would be available in the ordinary course of things.³³

In assessing this claim, the High Court judgment clarified that “substantial redress” is not equivalent to the standard of “irreparable harm” required for an interdict.³⁴ Rather,

²⁷ *Kangra* (2023) at paras 38–51.

²⁸ *Kangra* (2023) at paras 18–26.

²⁹ *Kangra* (2023) at paras 5 and 19.

³⁰ *Kangra* (2023) at paras 19–21.

³¹ *Kangra* (2023) at para 22.

³² *Kangra* (2023) at para 22.

³³ *Kangra* (2023) at para 23.

³⁴ *Kangra* (2023) at paras 19–20.

it constitutes a lower threshold, one requiring the applicant to show that a future court order would not provide adequate or effective relief. Notably, the court emphasised that harm, in itself, does not establish urgency; it is instead a precondition. While the definite existence of harm is a matter for determination on the merits of the case,³⁵ the urgency enquiry therefore requires only a reasonable possibility of harm.

The question of urgency was contested, however. The applicants relied on expert testimony from OMI Solutions which indicated that mining activities were likely to lead to the dewatering of aquifers and the pollution of the 24 natural springs due to acid mine drainage and the severe degradation of water quality.³⁶ This, they argued, would have irreversible consequences for both the environment and their farming operations.³⁷ Kangra, by contrast, disputed the existence of any imminent harm.³⁸ Its expert evidence suggested that there was no real risk to surface or groundwater systems and that, in any event, any environmental impacts could be mitigated.³⁹ Kangra argued, furthermore, that the applicants had failed to demonstrate that any harm would materialise before the pending appeal was considered.⁴⁰ Notwithstanding these disputes, the High Court found the matter sufficiently urgent. It accepted that there was a credible possibility of harm to the water resource which, if realised, would be irreversible.⁴¹ On this basis, the High Court proceeded to consider the question of *locus standi* and the merits of the interdict.⁴²

Kangra argued that the applicants lacked the necessary legal standing to bring the application in that they failed to show that they experienced any loss or damage.⁴³ Kangra contended that the applicants were simply “own interest litigants” attempting to interdict something that did not belong to them – specifically, water, which is not susceptible to private property rights but is now held in the “public trust”.⁴⁴ Notably, the NWA does not

³⁵ *Kangra* (2023) at para 21.

³⁶ *Kangra* (2023) at para 21.

³⁷ *Kangra* (2023) at para 22.

³⁸ *Kangra* (2023) at para 23.

³⁹ *Kangra* (2023) at para 23.

⁴⁰ *Kangra* (2023) at para 23.

⁴¹ *Kangra* (2023) at para 25.

⁴² *Kangra* (2023) at para 26.

⁴³ *Kangra* (2023) at paras 27–28.

⁴⁴ *Kangra* (2023) at paras 27 and 39. Also see Takacs D “South Africa and the human right to water: Equity, ecology, and the public trust doctrine” (2016) *Berkeley Journal of Environmental Law* at 77.

have an explicit provision on *locus standi*.⁴⁵ The applicants (the farmers) therefore relied on section 32 of NEMA.⁴⁶ This section expressly grants private individuals the legal standing to enforce environmental laws either for their own interest or in the public interest. It states that “[a]ny person or group of persons may seek appropriate relief in respect of any breach or threatened breach of any provision of this Act ... or of any provision of a specific environmental management Act”, including for their own interest. A “specific environmental management Act” under section 1 of NEMA includes the NWA.⁴⁷

Therefore, although standing is not directly provided for in the NWA, the applicants held that *locus standi* is established by reading section 32 of NEMA with the NWA.⁴⁸ Since the applicants acknowledged that the relief sought had a final effect, they needed, in the third instance, to meet the requirements for a final interdict.⁴⁹ The High Court thus had to determine if the applicants satisfied the three requirements to halt mining activities pending the appeal. This involved determining whether the applicants had established (1) a clear right, (2) injury or harm, and (3) the absence of an adequate alternative remedy.⁵⁰ The first requirement, a clear right, was the central point of contention. It turned entirely on whether the applicants had lodged a valid appeal under the NWA. If the appeal was valid, section 148(2)(b) of the NWA would trigger the automatic suspension of Kangra’s WUL, rendering its continued mining unlawful.⁵¹

The dispute thus hinged on the interpretation of section 148(3) of the NWA, which provides that an appeal must commence within 30 days “after” certain trigger events (publication of the decision, notification, or the furnishing of reasons), whichever occurs last. The applicants maintained that their appeal was valid despite being lodged before reasons were provided,⁵² while Kangra argued that no valid appeal could exist until all trigger events had occurred. Kangra therefore rendered the appeal premature and invalid.

⁴⁵ See Chamberlain L “Standing in the Water Tribunal: Access to justice down the plughole? (2014) (30)3 *South African Journal on Human Rights* 545; High Court case at [33].

⁴⁶ *Kangra* (2023) at para 23.

⁴⁷ *Kangra* (2023) at para 33.

⁴⁸ *Kangra* (2023) at para 33.

⁴⁹ *Kangra* (2023) at para 37.

⁵⁰ *Kangra* (2023) at paras 38–51.

⁵¹ *Kangra* (2023) at para 38.

⁵² *Kangra* (2023) at para 40.

In fact, Kangra contended that the applicants were merely attempting to assert and protect an “undefined administrative right to condonation and appeal to the Tribunal”.⁵³

The High Court was accordingly required to interpret section 148(3) of the NWA, specifically the point at which an appeal is deemed to commence and how this relates to the notification of the decision and the provision of reasons.⁵⁴ In resolving the issue, the High Court adopted a purposive interpretation of section 148(3).⁵⁵ It rejected a strict, literal reading of the word “after”, which would have required all trigger events to occur before an appeal could be initiated.⁵⁶ Instead, the court placed emphasis on the word “within”, interpreting the provision as setting a deadline by which an appeal must be lodged, rather than prescribing the earliest permissible moment for doing so.⁵⁷ On this interpretation, an appeal can be initiated validly before reasons are furnished, and may be supplemented once these reasons became available.

The High Court justified this approach by invoking established principles of statutory interpretation. First, it adopted a holistic reading of the NWA, noting that the Act does not expressly prohibit the early lodging of an appeal.⁵⁸ Secondly, it cautioned against an interpretation that would lead to absurd and unjust outcomes – in particular, a situation in which the DWS could in effect evade accountability by delaying or withholding reasons, thereby preventing any appeal from being lodged.⁵⁹ Thirdly, drawing on precedent, the High Court endorsed a standard of substantial compliance rather than a rigid, mechanical approach.⁶⁰ On this basis, the High Court concluded that the applicants had substantially complied with the requirements of the NWA. The appeal was therefore valid, the WUL was suspended, and the applicants had established a clear right necessary for a final interdict. Notably, this interpretation of section 148(3) later formed a central ground of appeal before the SCA.

⁵³ *Kangra* (2023) at para 39.

⁵⁴ *Kangra* (2023) at paras 45 and 47.

⁵⁵ *Kangra* (2023) at para 74.

⁵⁶ *Kangra* (2023) at para 72.

⁵⁷ *Kangra* (2023) at paras 71, 73 and 76.

⁵⁸ *Kangra* (2023) at para 74.

⁵⁹ *Kangra* (2023) at para 74.

⁶⁰ *Kangra* (2023) at para 75.

Regarding the second requirement – that of harm – the court applied the standard of an “injury committed or reasonably apprehended”.⁶¹ The applicants reasoned, by presenting an expert opinion,⁶² that the unlawful use of the WUL posed a risk of polluting their water resources and impacting on their farming and livelihoods.⁶³ They argued that the requirement of harm can be presumed, given that the NWA was enacted specifically to protect water resources and those reliant on them.⁶⁴ They also argued that, even if harm were not presumed, they had shown the reasonable apprehension of harm the water use would have on their property and livelihood.⁶⁵ The court accepted that the applicants had established reasonable apprehension of harm, particularly given the potentially irreversible nature of groundwater contamination.

As for the third requirement – the absence of alternative remedies – the applicants pointed out that the appeal process outlined in sections 148–149 of the NWA is the designated dispute resolution mechanism, which they had already exhausted.⁶⁶ Indeed, other informal remedies, such as requesting that mining activities be suspended pending the appeal, had been unsuccessful.⁶⁷ A request to the DWS for an inspection and the issuance of a directive to prevent the unlawful use of water had also failed.⁶⁸ Consequently, the applicants argued that they had no other remedy available.⁶⁹ The court accepted the applicant’s averment that no adequate alternative remedy was available.

Satisfied, then, that the requirements for an interdict had been proven, the High Court granted a final interdict prohibiting Kangra from conducting any mining operations at the adit pending the appeal.⁷⁰ In its purposive approach, the High Court in effect accorded

⁶¹ *Kangra* (2023) at para 55.

⁶² *Kangra* (2023) at paras 22 and 49.

⁶³ *Kangra* (2023) at paras 28–29.

⁶⁴ *Kangra* (2023) at para 29.

⁶⁵ *Kangra* (2023) at paras 28 and 49.

⁶⁶ *Kangra* (2023) at para 50.

⁶⁷ *Kangra* (2023) at para 50.

⁶⁸ *Kangra* (2023) at para 50.

⁶⁹ Kangra suggested other potential remedies would be available, such as prosecution under the NWA or a mandamus to compel the Department to provide reasons.

⁷⁰ *Kangra* (2023) at para 77.

greater weight to the protection of water resources than to Kangra's competing mining interest.⁷¹

3.2 The SCA case

The High Court granted leave to appeal directly to the SCA on what it saw as a novel issue of law: "the interpretation regarding s148(3) of the NWA as 'there might be uncertainty about the issue of *locus standi* in terms of the NWA that needs clarification'". The two central issues for determination in the SCA were, first, whether the respondents (the commercial farming enterprises) had *locus standi* to seek an interdict against Kangra who is operating under a purportedly suspended WUL, to prevent it from continuing with its water use and mining activities.⁷² The second issue was whether the respondents met the three legal requirements for an interdict – particularly the requirement of harm. Notably, in the SCA judgment, the issue of *locus standi* was directly related to the issue of harm.⁷³

Whereas the High Court had found that the respondents (the farmers) had *locus standi* based on section 32 of NEMA,⁷⁴ the SCA took a different approach. Kangra successfully argued before the SCA that the respondents did not expressly plead their legal standing in their initial court papers. Central to the SCA's reasoning was the principle laid down in *Pilane and Another v Pilane and Another* 2013 (4) BCLR 431 (CC)⁷⁵ that applicants must "stand or fall by their founding papers".⁷⁶ This principle requires that applicants set out their case fully in the founding papers to ensure that respondents are allowed to respond adequately; the failure to do so may amount to an ambush and undermine procedural fairness.⁷⁷ In the SCA, the farmers failed to establish how they would suffer harm if the interdict were not granted.⁷⁸ They merely alleged that Kangra's mining activities and the unlawful use of the WUL were "a pollution threat to natural

⁷¹ The High Court however granted leave to appeal to the SCA, identifying what it considered to be a novel legal issue – the interpretation of section 148(3) of the NWA – as there appeared to be uncertainty surrounding its application.

⁷² *Kangra* (2025) at para 8.

⁷³ *Kangra* (2025) at para 20.

⁷⁴ *Kangra* (2025) at para 11.

⁷⁵ *Pilane and Another v Pilane and Another* 2013 (4) BCLR 431 (CC) at para 49; SCA case at [22].

⁷⁶ *Kangra* (2025) at para 22.

⁷⁷ *Kangra* (2025) at para 22.

⁷⁸ *Kangra* (2025) at para 8.

spring water in the area” on which their farming activities rely.⁷⁹ The farmers held that “as neighbouring landowners, they will be ‘impacted’ by the mining and water use at the adit”.⁸⁰

On that account, they did not, in their founding papers, specifically and explicitly argue that the ongoing mining activities prejudiced water supplies at their farms. The closest they came to alleging harm was to state that Kangra’s mining operations “may well cause dewatering of the shallow perched aquifer, which in turn will affect the flow of water in the springs ...”.⁸¹ Kangra, by contrast, was able to show that “[it] operated the mine for over six years without any reduction of water and pollution thereof”. Kangra thus contended that the respondents did not allege any actual harm and relied merely on speculative “possibilities that may occur in the future”.⁸²

In maintaining that the farmers had not sufficiently demonstrated harm, Kangra also challenged a report prepared by OMI Solutions and dated 12 April 2022 which raised concerns about the adequacy of Kangra’s Environmental Authorisation (EA).⁸³ Notably, in South Africa, an EA is required not only for activities that might have a significant impact on the environment; rather, it is required where any proposed activity falls within the scope of activities listed under the Environmental Impact Assessment (EIA) Regulations (GN R982 of 2014) promulgated under NEMA. The listed activities are defined as ones that may have a detrimental impact on the environment, thereby triggering the need for prior authorisation irrespective of whether significant harm is ultimately proven. The authorisation process is governed by NEMA, the EIA Regulation, and the environmental management principles set out in section 2 of the NEMA. These principles are intended to guide decision-making or administrative discretion. They require that potential impacts be investigated and assessed and that, where possible, environmental harm be avoided, minimised, or adequately mitigated.

⁷⁹ *Kangra* (2025) at para 13.

⁸⁰ *Kangra* (2025) at para 13.

⁸¹ *Kangra* (2025) at para 14.

⁸² *Kangra* (2025) at para 15.

⁸³ Kangra pointed out that the report by OMI neither disputes the fact that it (OMI) conducted the preliminary investigations required under the relevant regulations, nor questions whether public participation or community consultation took place during the EIA process. See SCA case at [13].

Kangra acknowledged that there would be some impact on the surface, but argued that it would be minimal and could be mitigated.⁸⁴ Even so, while the granting of the EA indicates that the competent authority was satisfied, on the information before it, that the anticipated environmental impacts could be addressed or at least mitigated, it does not amount to a conclusion that no significant harm would occur, and neither does it preclude a subsequent challenge in which the adequacy of the assessment process or the effectiveness of the proposed mitigation measures is put into question.

Nonetheless, the SCA agreed with Kangra, finding that the respondents did not establish or sufficiently argue actual harm or apprehension of harm. Their reliance on possibilities, rather than substantiated or imminent injury or harm, was insufficient to meet the evidentiary threshold required for a final interdict. The SCA therefore reaffirmed that even within the broader standing framework under NEMA, applicants are not exempt from the obligation to properly plead their substantive case. The SCA hereby emphasised that procedural discipline and compliance remain a cornerstone of South Africa's civil litigation, even in matters relating to environmental protection and the public interest.

What followed was the court's assessment of whether the respondents met the legal requirements for an interdict. In his SCA judgment, Mocumie JA, in citing the seminal judgment of *Setlogelo v Setlogelo* 1914 AD 221 at 227, affirmed the three well-established requirements for a final interdict.⁸⁵ Notably, in the SCA case, only the second requirement was elaborated upon – namely, whether the respondents had demonstrated that their right had been interfered with by the appellant and that an injury had been committed or was reasonably apprehended.⁸⁶ The focus on only one of the three requirements was justified by the fact that the issue of harm was directly related to the issue of *locus standi*.⁸⁷ Insofar as the respondents (the farmers) could not identify actual harm or potential harm, they failed to satisfy the second requirement for the granting of the interdict.⁸⁸ On this ground alone, Mocumie JA found that the appeal ought to succeed. Therefore, without

⁸⁴ *Kangra* (2025) at paras 13 and 15.

⁸⁵ These are that (1) an applicant must demonstrate a clear right; (2) there is an injury committed or reasonably apprehended; and (3) there is no other satisfactory or similar remedy.

⁸⁶ *Kangra* (2025) at paras 19–20.

⁸⁷ *Kangra* (2025) at para 20.

⁸⁸ *Kangra* (2025) at para 20

considering the other requirements for an interdict,⁸⁹ the SCA's focus shifted to briefly considering, at least to an extent, the original ground for appeal, namely the interpretation of section 148(3) of the NWA and the uncertainty about *locus standi*.

At the time at which the SCA appeal was heard, Kangra had appealed against the order of the Water Tribunal granting condonation for the late filing of the farmers' appeal. According to the SCA, this extended the period within which the commercial farmers ought to have filed their appeal.⁹⁰ In light of this separate and ongoing legal process, the SCA held that, at a practical level, the SCA appeal may have been premature and that the court should not have entertained the matter.⁹¹ The parties ought to have waited for the appeal relating to condonation before the Water Tribunal before proceeding with the SCA appeal.⁹² In this regard, and at the end of its judgment, the SCA, somewhat unexpectedly, raised concerns about the jurisdiction of the Water Tribunal⁹³ and whether the Tribunal had the authority to consider the application for condonation for the late appeal.⁹⁴ The SCA held that a proper reading of section 148(3) of the NWA does not provide the Water Tribunal the authority to consider the application for condonation *post facto*.⁹⁵ Mocumie JA (Hughes, Weiner and Molefe JJA and Chili AJA concurring), held that

the Tribunal did not have the power to consider the application for condonation *post facto*. The Minister decides whether to grant the WUL. Until that decision has been rescinded or set aside on any ground by a court of law, it stands. No other avenue can be pursued to undermine the decision by the Minister which can amount to such incompetent action being legitimised by a court of law. The Tribunal ought not have entertained the application for condonation or even extended the period within which the condonation should have been sought. It simply had no jurisdiction to do so.⁹⁶

Significantly, the SCA had already determined that the appeal should succeed on the basis of the respondent's failure to establish harm, expressly noting that "on this leg alone" the appeal ought to be upheld. The subsequent discussion of the Tribunal's

⁸⁹ Kangra (2025) at para 19.

⁹⁰ Kangra (2025) at para 24.

⁹¹ Kangra (2025) at para 24.

⁹² Kangra (2025) at para 24.

⁹³ Kangra (2025) at para 25.

⁹⁴ Mocumie JA noted that it is clear on a reading of section 148(3) of the NWA that the Tribunal did not have the power to consider the application for condonation *post facto*. It simply had no jurisdiction to do so.

⁹⁵ Kangra (2025) at para 25.

⁹⁶ Kangra (2025) at para 25.

jurisdiction was therefore not necessary to the outcome of the case and may be regarded as *obiter dicta*. The SCA therefore held that a (lawfully) granted WUL remains valid until it is set aside through a lawful process. It upheld Kangra's appeal, setting aside the High Court's order and finding that the respondents lacked properly established *locus standi* and had failed to demonstrate actual or reasonably apprehended harm. In doing so, the SCA adopted a markedly formalistic approach, placing emphasis on procedural compliance and the adequacy of pleadings while limiting its engagement with the broader statutory and environmental context of the dispute.

4 CRITICAL REFLECTIONS

Following its promulgation in 1998, the NWA introduced a fundamentally reconfigured legal and governance framework for water in South Africa.⁹⁷ Among its most transformative features is the statutory introduction of the concept of public trusteeship and the establishment of the Water Tribunal.⁹⁸ In terms of section 3 of the NWA, the national government, acting through the minister, is designated as the public trustee of the country's water resources. This designation imposes a positive obligation to ensure the equitable allocation, sustainable use, and conservation of water in the public interest.

Since its introduction, the scope, meaning and full implications of the concept of public trusteeship have been the subject of widespread research and debate.⁹⁹ Even so, the concept of public trusteeship remains in its legal infancy. Indeed, Blackmore argues that "the incoherence and concomitant misunderstanding of the [concept of public trusteeship] and its application in the Act is puzzling".¹⁰⁰ He contends that the scope and application of the concept may not have been fully understood by the drafters of the Act or even the legislature that adopted it.¹⁰¹ In fact, while South African courts have referred

⁹⁷ September-Van Huffel (2024) at 163.

⁹⁸ Viljoen "The concept of public trusteeship" (2024) at 499; Viljoen "Public trusteeship" (2024) at 80.

⁹⁹ Blackmore AC "Getting to grips with the public trust doctrine in biodiversity conservation: A brief overview" (2018) 48(1) *Bothalia* 5; Van der Schyff E "Stewardship doctrines of public trust: Has the eagle of public trust landed on South African soil?" (2013) *The South African Law Journal* 369; Viljoen G "The transformed water regulatory regime of South Africa [discussion of *South African Association for Water User Associations v Minister of Water and Sanitation* [2020] ZAGPPHC 252 (19 June 2020)]" (2022) 33 *Stellenbosch Law Review* 148 at 150; Viljoen "Public trusteeship" (2024) at 83.

¹⁰⁰ Blackmore AC "Rediscovering the origins and inclusion of the public trust doctrine in South African environmental law: A speculative analysis" (2018) 27(2) *Review of European, Comparative & International Environmental Law* 196.

¹⁰¹ Blackmore (2018) 196.

to “the State acting as a custodian, holding the environment in public trust for the people”,¹⁰² there has been no in-depth analysis in reported case law of how public trusteeship impacts water governance.

Against this backdrop, the High Court’s judgment in the Kangra matter is particularly significant for its willingness to foreground public trusteeship as a foundational principle within the country’s water law regime, specifically in relation to the regulation of mining activities. By contrast, despite the centrality of water-resource protection to the merits of the dispute, the SCA failed to engage meaningfully with, develop, or even situate its reasoning within the framework of public trusteeship. This omission is striking, given that the concept provides a constitutionally infused lens through which competing claims to water use – especially between mining industries and affected landowners – could have been reconciled more coherently. Instead, the SCA adopted a narrow, procedural approach, in the process side-stepping inquiry into the state’s fiduciary obligations in governing the country’s water resources.

The Water Tribunal plays a similarly critical role in giving effect to the objectives of the Act, doing so by providing a dedicated forum for adjudicating disputes and appeals against administrative decisions.¹⁰³ As with the concept of public trusteeship, the institutional functioning and jurisdiction of the Water Tribunal remain relatively underdeveloped in South African jurisprudence.¹⁰⁴ The SCA’s *obiter* and arguably restrictive engagement with the Tribunal, particularly in relation to condonation, underscore the SCA’s reluctance to engage with the broader administrative architecture designed to give effect to the NWA’s transformative aims.

This section of the case note therefore critically examines both the concept of public trusteeship and the role of the Water Tribunal as they emerge in the *Kangra* jurisprudence. It argues that the SCA’s failure to engage substantively with these mechanisms reflects a missed doctrinal opportunity to advance a coherent and purposive

¹⁰² *Hichange Investments (Pty) Ltd v Cape Produce Co (Pty) Ltd t/a Pelts Products* 2004 2 SA 393 (E)418B-C.

¹⁰³ Couzens E, Maduramuthu & Bellengère A “Water security and judicial and administrative confusion in South Africa: *The Trustees of the Time Being of the Lucas Scheepers Trust, IT 633/96 v MEC for the Department of Water Affairs, Gauteng* 2015 ZAGPPHC 211 (17 April 2015)” (2017) *PELJ* 1 at 3.

¹⁰⁴ Van Dyk O “A tribunal is not a court, but it might be as effective as a court: A reflection on *Ledla Structural Development (Pty) Ltd v Special Investigating Unit* 2023 (2) SACR 1 (CC)” (2025) 46(2) *Obiter* 460 at 461.

approach to water governance – one capable of mediating the tension between mining interests and the protection of South Africa’s scarce water resources more effectively.

4.1 Public trusteeship: A critique of the fiduciary duties of the state

As mentioned, the concept of public trusteeship was introduced statutorily into South Africa’s water law with the promulgation of the NWA, marking a fundamental transformation of the legal framework governing water resources.¹⁰⁵ In her High Court judgment, Du Plessis AJ explicitly situated the concept of public trusteeship within this broader legal shift.¹⁰⁶ The High Court recognised that the NWA abolished the historical distinction between private and public water,¹⁰⁷ replacing a regime that previously enabled exclusive, private rights, with one that in which all water resources, both surface and groundwater, are held in trust for the benefit of the public as a whole.¹⁰⁸

The preamble to the NWA reinforces this transformation by affirming the national government’s overall responsibility for and authority over the nation’s water resources. Scholarship shows that the concept of public trusteeship was introduced as the conduit through which this new, unified water law regime is to be implemented.¹⁰⁹ In terms of section 3 of the NWA, the country’s water resources are placed under the responsibility and authority of the national government, which is appointed as the public trustee and cloaked with fiduciary responsibilities.¹¹⁰ These responsibilities impose substantive obligations on the state to regulate water use in accordance with the NWA’s core objectives of equitable allocation, sustainable use and water resource conservation.¹¹¹ As the public trustee, the state is empowered, and required, to regulate the use, flow and control of all water in the Republic in a manner that prioritises the public interest over competing private or commercial claims.¹¹²

¹⁰⁵ Couzens et al. (2017) 2.

¹⁰⁶ *Kangra* (2023) at paras 52–54.

¹⁰⁷ *Kangra* (2023) at para 52.

¹⁰⁸ See the preamble to the NWA; Takacs D (2016) 76; Viljoen “The transformed water regulatory regime” (2022) at 150.

¹⁰⁹ Van der Schyff (2013) at 370–371; Viljoen “Public trusteeship” (2024) at 83–84.

¹¹⁰ September-Van Huffel (2024) at 161.

¹¹¹ See section 2 of the NWA.

¹¹² See section 3(3) of the NWA.

Du Plessis AJ in her High Court judgment gave meaningful content to this fiduciary role, framing the licensing regime under the NWA as the primary mechanism through which the State mediates competing water uses:

Effectively the state mediates different water uses through the granting of licences. These decisions lie with the Department and the Minister as they are polycentric. When making these decisions, they are guided by the NWA in doing so. They are required to place the public interests (e.g. distribution and conservation) above private (often commercial) interests, to achieve the purpose of the NWA as set out in [section 2 of the NWA].¹¹³

In this way, public trusteeship was not treated as a vague or normative ideal but as a concrete interpretive lens through which water governance decisions should be evaluated. In terms of section 2 of the NWA, this decision-making process must take into account factors such as meeting the basic human needs of present and future generations;¹¹⁴ promoting the sustainable and beneficial use of water in the public interest;¹¹⁵ facilitating economic development;¹¹⁶ and reducing and preventing pollution and degradation of water resources.¹¹⁷ This fiduciary framework is operationalised through chapter 4 of the NWA, which sets out the legal framework by which the public trustee is expected to allocate and regulate the use of the country's water resources. Mining activities, such as those conducted by Kangra, typically trigger multiple water uses as defined in section 21 of the NWA. These may include abstraction, storage, dewatering, pollution control, and wastewater discharge – all of which require prior authorisation.

These water uses are centrally allocated through a system of administrative or statutory authorisations. In deciding whether to grant authorisation or a WUL, the DWS, as the public trustee and acting through the Chief Director, must assess the application against the requirements listed in section 27 of the NWA. These include the efficient and beneficial use of water in the public interest,¹¹⁸ the potential impact on the water resource and existing lawful or other users,¹¹⁹ and the broader socio-economic implications of the

¹¹³ *Kangra* (2023) at para 54.

¹¹⁴ See section 2(a) of the NWA.

¹¹⁵ See section 2(d) of the NWA.

¹¹⁶ See section 2(e) of the NWA.

¹¹⁷ See section 2(h) of the NWA.

¹¹⁸ See section 27(1)(c) of the NWA.

¹¹⁹ See section 27(1)(a) and (f) of the NWA.

proposed water use.¹²⁰ It follows that this licensing process is not merely administrative, but the principal mechanism through which the state discharges its fiduciary obligations as public trustee.

It appears that the High Court intended to engage further in the matter, but then noted, *obiter*, that it was not tasked to pronounce on the substantive issues raised in the appeal.¹²¹ Notably, the *obiter dictum* suggests a preference for the fiduciary duty to protect the country's water resources in the public interest rather than for private and commercial interests such as mining.¹²² So interpreted, the concept of public trusteeship serves as a useful framework for navigating the tensions between water conservation or protection and mining activities that could negatively affect water resources.¹²³ By contrast, the SCA, in overturning the decision of the High Court, did not engage with the concept of public trusteeship or the state's fiduciary role in navigating the tension between water protection and commercial interests in mining. Rather than situating the dispute within the context of the state's fiduciary obligations to protect water resources, the SCA approached the matter through a narrow, procedural lens, focusing on pleadings, legal standing, and evidentiary thresholds. In doing so, it reduced what is fundamentally a question of public resource governance to a conventional private law dispute.

Similarly, the SCA's restrictive interpretation of the appeal and suspension mechanisms under section 148 of the NWA reflects a failure to appreciate their function within the public trusteeship framework.¹²⁴ The automatic suspension of a WUL pending appeal should be interpreted not as a procedural technicality but as a substantive safeguard to prevent potentially irreversible harm while the lawfulness of a licence is examined. Given its adoption of a rigid and formal interpretation, the SCA in effect undermined this protective function and, by extension, the state's ability to fulfil its fiduciary duties. In fact, one may even argue that the SCA's reasoning gives insufficient weight to the broader administrative and environmental law framework within which the

¹²⁰ See section 27(1)(d) of the NWA.

¹²¹ High Court case at [54].

¹²² September-Van Huffel (2024) at 152.

¹²³ September-Van Huffel (2024) at 156.

¹²⁴ The regulatory framework governing authorisations includes procedural safeguards. Decision-makers are required to provide written reasons for granting or refusing a license, while affected parties have the right to appeal such decisions to the Water Tribunal in terms of section 148 of the NWA.

NWA operates.¹²⁵ By prioritising procedural formalism over substantive fiduciary obligations, the SCA failed to develop coherent jurisprudence capable of guiding future disputes at the intersection of mining and water-resource protection.

4.2 The Water Tribunal

The Water Tribunal was established in terms of section 146(1) of the NWA as an independent statutory body with the authority to hear appeals against decisions made by the DWS or any other competent authority, particularly those concerning the granting or refusal of WULs.¹²⁶ In this respect, the Tribunal forms an integral part of the institutional architecture through which the state, as public trustee, gives effect to its regulatory and fiduciary obligations.

With its powers set out in section 148 of the NWA, the jurisdiction of the Water Tribunal is primarily appellate in nature. In terms of section 148(1), the Water Tribunal has jurisdiction to hear appeals against a wide range of administrative decisions made by the responsible authority, typically the DWS or its delegated officials.¹²⁷ Examples include appeals against directives issued under section 19 (pollution prevention), decisions regarding the temporary transfer of water-use entitlements, and determinations on WUL applications, whether brought by the applicant or by objectors who have lodged a written objection within the prescribed period.¹²⁸ As such, it plays a critical role in promoting accountability and transparency within the broader framework of public trusteeship.

The procedural functioning of the Tribunal is governed not only by the NWA but also by the Water Tribunal Rules, promulgated under section 148(5) of the NWA. These rules regulate, inter alia, the manner and timing of appeals. The national government published the Water Tribunal Rules as Government Notice 926 in Government Gazette 28060 on 23 September 2005. Rule 3 of the Tribunal Rules specifically sets out the process for lodging appeals and applications. Any appellant or applicant acting in terms of section 148(1) or section 22 of the NWA must submit a written notice clearly stating their full names, the grounds for appeal or application, and the signature of the appellant or their duly

¹²⁵ As argued in section 3.2 above, the NWA, NEMA and MPRDA form an integrated system of governance.

¹²⁶ Chamberlain (2014) at 545; Viljoen “The concept of public trusteeship” (2024) at 502.

¹²⁷ Chamberlain (2014) at 545.

¹²⁸ See section 148(1)(f) of the NWA. These include appeals against decisions and directives listed in section 148(1)(a)–(m) of the NWA.

authorised representative. Rule 4 prescribes the time limits for appeals, applications, and requests for condonation.

In fact, an appeal must be lodged within 30 days of whichever of the following occurs last: (a) the publication of the decision in the Government Gazette; (b) the delivery of notice of the decision to the appellant; or (c) the provision of reasons for the decision. Where the responsible authority has notified a person of a decision in writing, the date of the document is deemed the date on which the decision was made.¹²⁹ In terms of rule 4(4), the Tribunal may, upon good cause shown and on application by any party, grant condonation for the late lodging of an appeal or application. Notably, this condonation mechanism reflects a broader principle of administrative justice, namely that procedural rules should not operate as rigid barriers, particularly where delays may be attributable to administrative shortcomings such as the failure to provide reasons for a decision.

More broadly, the Tribunal operates within a constitutional and administrative law framework that includes sections 24, 27 and 33 of the Constitution of the Republic of South Africa, 1996, the NWA (and its concept of public trusteeship), NEMA, and the Promotion of Administrative Justice Act 3 of 2000 (PAJA).¹³⁰ PAJA is particularly important in guiding the Tribunal's administrative actions inasmuch as it seeks to ensure that these are lawful, reasonable and procedurally fair.¹³¹ Together, these legislative instruments promote transparent, accountable, and just decision-making processes that align with constitutional values and support administrative and environmental justice.¹³²

The Kangra litigation brought the relationship between these procedural mechanisms and the substantive objectives of the NWA into sharp focus. Central to the dispute was the operation of section 148(2)(b) of the NWA, which provides that the lodging of an appeal to the Tribunal automatically suspends the WUL pending the outcome of the appeal. The High Court interpreted this suspension mechanism as a critical legal safeguard within the public trusteeship framework. It prevents potentially harmful water use from proceeding before the lawfulness or appropriateness of the

¹²⁹ Rule 4(3).

¹³⁰ Van Dyk (2025) at 467; Viljoen "The concept of public trusteeship" (2024) at 502.

¹³¹ Viljoen (2024) at 502.

¹³² Van Dyk (2015) at 468.

licence is confirmed, thereby upholding the precautionary principle and protecting water resources from irreversible harm.¹³³

The SCA case, by contrast, focused narrowly on the timing requirements for lodging an appeal under section 148(3), holding that the Tribunal lacked jurisdiction to entertain an appeal or grant condonation once the prescribed 30-day period had lapsed. In doing so, the SCA effectively treated the statutory timeframe as a rigid jurisdictional bar rather than as part of a broader procedural framework designed to promote procedural fairness, public accountability, and equitable access to water-governance processes.

It is argued, therefore, that the absence of an express provision on condonation in section 148(3) does not necessarily imply a prohibition. Rather, it may be regarded as a “legislative gap”, one which the Tribunal Rules, specifically the provision permitting condonation, are intended to fill. By disregarding this procedural framework, the SCA in effect rendered the condonation mechanism redundant while undermining the Tribunal’s ability to function as an accessible and responsive dispute-resolution forum. It follows that the effect of the SCA’s decision is to narrow the practical scope of the Tribunal’s jurisdiction and weaken the procedural safeguards embedded in the NWA.

4.3 *Locus standi*

The discussion now turns to the issue of *locus standi*, a fundamental requirement for accessing administrative remedies under the concept of public trusteeship and the Water Tribunal.¹³⁴ As discussed above, the Kangra jurisprudence grappled extensively with the question. Both the High Court and SCA were required to determine if the commercial farmers had the legal standing to seek an interdict against Kangra.

The issue is particularly complex given that the NWA does not contain an express provision conferring standing on individuals to challenge decisions relating to water that does not legally “belong” to them.¹³⁵ This difficulty arguably follows directly from the transformative effect of the NWA itself. By replacing private entitlements with a system in which water is held in trust by the state, the NWA fundamentally altered the legal

¹³³ *Kangra* (2025) at para 17; Viljoen “The concept of public trusteeship” (2024) at 503.

¹³⁴ Chamberlain (2014) at 543.

¹³⁵ *Kangra* (2023) at para 27.

nature of water rights.¹³⁶ The question thus arises of how individuals are affected in vindicating the use and protection of water resources when they can no longer rely on a private or proprietary claim but on the protection of a public resource held in trust for all.

Du Plessis AJ, in her High Court judgment, laid out a theoretical foundation for answering this question.¹³⁷ Drawing on section 32 of NEMA, she held that the farmer did have legal standing. Section 32(1) expressly broadens access to courts by allowing any person or group to approach a competent court to enforce environmental rights.¹³⁸ This includes actions brought in their own interest, in the interest of others, or in the public interest. This provision thus explicitly connects legal standing to environmental protection, including water resources, and allows individuals to challenge activities affecting these resources even where they cannot point to a traditional proprietary right.

This interpretation is significant for two reasons. First, it recognises that *locus standi* in environmental matters cannot be confined to privately owned resources. Secondly, it demonstrates how section 32 of NEMA complements the logic of public trusteeship by enabling affected persons to act, in effect, as private enforcers of public obligations.

However, on appeal, the SCA adopted a stricter approach. Although it did not reject the applicability of section 32 of NEMA in principle, it held that the applicants had failed to plead their standing properly in the founding papers. More specifically, the court found that they had not established a case for actual or apprehended harm.¹³⁹ The farmers' case, in the view of the SCA, rested on future possibilities rather than a properly substantiated basis for harm. This failure was decisive not only for the interdict but also for standing itself because the SCA linked the existence of standing to the adequacy of the pleaded harm. This approach clearly reflects a more formalistic conception of *locus standi*. Rather than treating standing as a gateway informed by section 32 of NEMA and the broader constitutional and statutory commitments to environmental protection, the SCA treated it as tightly bound to procedural and evidentiary pleading. The effect was to narrow access to justice in a context where environmental harm, especially harm to water

¹³⁶ Viljoen G "A note on licences as property: Some implications for the South African water regulatory regime" (2017) 23 *SAJELP* 195.

¹³⁷ *Kangra* (2023) at paras 29–35.

¹³⁸ Chamberlain (2014) 544; High Court case at [27].

¹³⁹ *Kangra* (2025) at para 20.

resources, is often cumulative, complex and not always immediately visible at the moment litigation is instituted.

The contrast between the High Court and SCA's judgments is therefore notable. On the one hand, the High Court adopted a purposive and context-sensitive approach, reading the NWA alongside NEMA in a manner that gave effect to public trusteeship. On the other, rather than developing *locus standi* in a manner consistent with public trusteeship, section 32 of NEMA and the broader constitutional commitment to environmental protection, the SCA retreated into procedural formalism.

While a broad approach to standing may be normatively desirable in environmental matters, it must be balanced against legitimate countervailing concerns. Overly or expansive *locus standi* may invite opportunistic or vexatious litigation, including litigation motivated by commercial or obstructionist purposes rather than genuine interest in environmental protection. Such litigation may impose significant burdens on respondents and delay development projects. In addition, It may also risk undermining legal certainty if courts are required to adjudicate poorly pleaded or speculative claims. These concerns underline the importance of maintaining procedural discipline, including via ensuring compliance with established pleading requirements, in order to ensure that only properly substantiated disputes are brought before the courts.

At the same time, an overly restrictive approach to *locus standi* may insulate harmful conduct or activities from scrutiny. In a water-scarce country, and particularly in regard to mining activities, which are widely recognised as water-intensive and potentially polluting, such restrictiveness risks limiting the ability of courts to intervene or respond to threats to water resources before environmental harm becomes irreversible.

The challenge, therefore, lies in striking an appropriate balance between preserving meaningful access to justice in environmental matters, on the one hand, and safeguarding the integrity and efficiency of judicial processes, on the other.

5 CONCLUDING REMARKS AND RECOMMENDATIONS

This case note originated from a dispute concerning a WUL granted to Kangra Coal in support of its underground mining operations and associated infrastructure. The mining activities occur beneath the farms owned by the Corneels Greyling Trust and Mooibank Boerdery (Pty) Ltd. These neighbouring farming entities, which depend on 24 natural

springs for irrigation and agricultural production,¹⁴⁰ challenged the WUL on the basis that the mining activities posed a risk to their water resources. The legal proceedings consequently progressed through the Water Tribunal, High Court and, ultimately, the SCA.

The High Court's judgment is significant for its purposive and context-specific approach. It recognised the transformative nature of the NWA and emphasised the concept of public trusteeship as a central principle of water governance. This enabled the court to interpret procedural mechanisms, such as the suspension of a WUL pending appeal, in a manner that prioritised the protection of water resources and gave effect to the state's fiduciary responsibilities. The SCA, in overturning the decision of the High Court, adopted a formalistic approach. It did not engage with the concept of public trusteeship or the state's fiduciary role, and instead resolved the dispute through a narrow focus on procedural compliance and pleading requirements. In doing so, the SCA treated the country's water law as a set of rigid rules rather than as a transformative framework aimed at protecting a scarce and constitutionally protected resource. This represents a missed opportunity to develop jurisprudence capable of guiding future conflicts between mining and water resource protection in South Africa and beyond.

It is noted that the SCA's emphasis on procedural compliance, legal certainty and the prevention of speculative litigation cannot be dismissed. Environmental litigation must balance broad access to justice with the need to avoid vexatious claims and enforce fairness to licence holders who rely on administrative authorisations. The challenge, therefore, is not to abandon procedural compliance but to align it more closely with the substantive objectives of public trusteeship and environmental protection. To this end, three interrelated recommendations are proposed.

First, the concept of public trusteeship requires clearer and more consistent judicial articulation. Courts should explicitly recognise section 3 of the NWA as imposing fiduciary duties on the state and use it as an interpretative lens when assessing disputes involving water use. This includes adopting a precautionary approach to harm, recognising that in a water-scarce country uncertainty should be resolved in favour of resource protection.

Secondly, the jurisdiction and procedural powers of the Water Tribunal require legislative clarification. In light of the SCA's restrictive interpretation, it is recommended

¹⁴⁰ Kangra (2025) at para 2.

that the NWA be amended to expressly recognise the Tribunal's power to grant condonation for late appeals.

Thirdly, a balanced approach to *locus standi* should be maintained. Section 32 of the NEMA, read with section 38 of the Constitution, provides a strong foundation for broad standing in environmental matters. Courts should require that standing is properly pleaded but should avoid overly rigid formalism that excludes litigants who, in substance, seek to protect scarce public resources. In fact, the requirement of a "reasonable apprehension of harm" should perhaps be interpreted in a manner that reflects the precautionary principle, rather than demanding near-certainty of harm before relief can be granted.

Ultimately, the Kangra litigation illustrates both the strengths and the limitations of South Africa's current water-governance framework. While the framework provides a range of mechanisms, including licensing, remedies and even a specialised tribunal to mediate the tension between mining and water protection, its effectiveness depends on how these mechanisms are interpreted and applied.

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